

IT Act 2000

Information Technology Act, 2000

Applicable IT Acts

User Query : IIIT DELHI is using my data and selling it to third party organisation now it is available online

Job Id. : aed905f5-c2a1-4b9d-b0f2-3b3dd2132835/IT Act

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APPLICABLE SECTIONS

Section 3

Definitions

This section defines various terms used in the Act, including "data", "information", "electronic record", and "person". Understanding these definitions is crucial in determining the applicability of the Act to the given scenario.

Section 43

Data Protection

This section deals with the compensation for unauthorized access to a computer system or data. If IIIT Delhi has sold your data to a third-party organization without your consent, this section might be relevant.

Section 43A

Compensation for failure to protect data

This section requires organizations to maintain reasonable security practices and procedures to protect sensitive personal data. If IIIT Delhi has failed to protect your data and sold it to a third party, this section could be applicable.

Section 66

Hacking with computer systems

Although this section primarily deals with hacking, it also covers unauthorized access to computer systems or data.

Section 72

Breach of confidentiality and privacy

This section deals with the unauthorized disclosure of information or data that is confidential or private.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

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In this scenario, IIIT Delhi's actions of using and selling your data to a third-party organization without your consent may be considered a breach of confidentiality and privacy. **Section 72** of the IT Act, 2000, specifically deals with such breaches.

2

Furthermore, **Section 43A** may also be applicable if it is found that IIIT Delhi failed to maintain reasonable security practices and procedures to protect your sensitive personal data.

3

The definitions under **Section 3** are crucial in understanding the scope of the Act and its applicability to electronic records and data.

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STRENGTHS & RIGHTS

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1. Right to confidentiality and privacy

The IT Act, 2000, provides protection for confidentiality and privacy under **Section 72** .

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2. Compensation for unauthorized access

Section 43 provides a right to compensation for unauthorized access to computer systems or data.

X RISKS & OBLIGATIONS

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1. Penalties for breaches

If IIIT Delhi is found guilty of breaching confidentiality and privacy or failing to protect data, they may face penalties under the Act.

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2. Liability for damages

IIIT Delhi may be liable for damages for unauthorized use and disclosure of your data.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Filing a complaint: You may file a complaint with the concerned authorities, such as the Cyber Cell or the Information Technology Department, Government of India.
2. Investigation: The authorities will investigate the matter, and if necessary, a First Information Report (FIR) may be registered.
3. Presenting electronic evidence: In court proceedings, electronic evidence, such as records of data usage and disclosure, may be presented to support your claim.
4. Jurisdiction: The courts in India will have jurisdiction over the matter, as the Act extends to the whole of India and applies to offenses committed outside India by any person.

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